

Balvir Kaur vs State Of Punjab & Ors on 30 April, 2009

Author: Surya Kant

Bench: Surya Kant

IN THE HIGH COURT FOR THE STATES OF PUNJAB AND
HARYANA AT CHANDIGARH

CWP No.6572 of 2009
Date of decision: April 30, 2009.

Balvir Kaur

...Petitioner(s)

v.

State of Punjab & Ors.

...Respondent(s)

CORAM:HON'BLE MR. JUSTICE SURYA KANT

1. Whether Reporters of local papers may be allowed to see the judgment ?
2. Whether to be referred to the Reporters or not ?
3. Whether the judgment should be reported in the Digest?

Present: Shri Harsh Aggarwal, Advocate for the petitioner.

ORDER

Surya Kant, J. - (Oral):

Notice of motion to respondents No.1 & 2 only at this stage. Shri G.S. Attariwala, Additional Advocate General, Punjab accepts notice on behalf of respondents No.1 & 2.

Keeping in view the nature of relief sought in this writ petition, no counter affidavit from respondents No.1 & 2 or issuance of notice to respondent No.3 is required.

The petitioner seeks quashing of the order dated 8.7.2008 passed by the Registrar of Marriages-cum-sub Divisional Magistrate, Balachaur whereby he has refused to register the petitioner's marriage with respondent No.3 on the ground that on 14.3.1991 when their arranged marriage was solemnized, the bride-groom, namely,

respondent No.3 was of less than the prescribed age as per the Hindu Marriage Act (in short the Act).

The petitioner has averred that she and respondent No.3 were born on 25.2.1969 and 18.6.1971 respectively. Their marriage was solemnized on 14.3.1991 and three children were born out of the wedlock on 1.3.1992, 15.11.1993 and 21.7.1997. The petitioner's husband is settled in Madrid (Spain) as is apparent from the copy of the passport (Annexure P-

2). It appears that with a view to join the company of her husband, the petitioner is required to obtain a marriage certificate for which she approached respondent No.2. However, vide the impugned order, respondent No.2 has refused to issue the said certificate on the ground that on 14.3.1991, her husband was less than 21 years of age.

Having heard Learned Counsel for the Petitioners and Learned State Counsel, I am of the considered view that the impugned order cannot sustain in law. True it is that in terms of Section 5 (iii) of the Act, the bridegroom should have completed the age of 21 years of age and the bride should not be less than 18 years at the time of marriage. However, Section 11 of the Act declares only those marriages to be null and void which are solemnized in contravention of Clauses (i), (iv) and (v) of Section 5 of the Act. In other words, if a Hindu marriage has been performed in contravention of Section 5(iii), it cannot be declared a void marriage. Similarly, Section 12 of the Act which defines the 'voidable marriages' also does not include a Hindu marriage solemnized in contravention of Section 5

(iii), amongst the 'voidable marriage'. In any case, no one had objected before respondent No.2 against registration of the subject marriage. Thus, there was no legal or factual basis for the Registrar of Marriages to refuse the registration of the petitioner's marriage with respondent No.3.

For the reasons afore-mentioned, the writ petition is allowed; the impugned order is quashed and respondent No.2 is directed to issue the requisite marriage registration certificate.

Dasti.

April 30, 2009.
kadyan

[Surya Kant]
Judge